

2:00 PM

LINE: 9

25-CLJ-07809

U.S. BANK NATIONAL ASSOCIATION VS. JENNIFER N FLORES

U.S. BANK NATIONAL ASSOCIATION
JENNIFER N FLORES

DOUGLAS S WALLACE
SACHA B MANIAR

DEFENDANT JENNIFER FLORES' MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the reasons stated below, the Motion to Set Aside Default and Default Judgment brought by Defendant Jennifer N. Flores is **GRANTED**. Plaintiff's Request for Judicial Notice in Opposition is **GRANTED**.

The Court notes that Defendant has not provided the address for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110(b)(1) [the first page of each paper must specify the date, time, and location, if ascertainable, of any scheduled hearing].)

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about April 23, 2019. (Complaint, p. 3, box BC-1 & Exh. A.) Plaintiff seeks \$5,482.45 in damages, plus court costs. (Id., p. 3, boxes BC-4–BC-6 & Exh. B.) Plaintiff alleges that Defendant breached the agreement on or about May 30, 2025, by failing to make payments due under the agreement.

Plaintiff requested default, and the clerk entered Defendant's default on December 17, 2025, with a memorandum of costs in the amount of \$297.61. The Court refers to this entry of default as the "Default." Plaintiff then requested default judgment in the total amount of \$5,780.06, which the Court signed and entered on February 10, 2026. The Court refers to this judgment as the "Default Judgment."

Through the present Motion, Defendant asks the Court to set aside the Default and Default Judgment so the case may be decided on its merits.

Defendant asserts that judgment was entered against her through mistake, excusable neglect, inadvertence, and surprise. She further asserts that she acted diligently in seeking assistance and bringing the Motion after learning of the judgment. She attaches a proposed Answer. (Flores Decl., ¶ 16 & Exh. B.) Defendant also notes that the only prejudice asserted by Plaintiff is limited to the ordinary burdens of litigation.

Plaintiff submits only the Proof of Service of Summons filed in this action on October 27, 2025. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A.) Defendant does not deny that she was served. (See Flores Decl., ¶ 3.)

Evidence

Defendant is the single parent of, and sole provider for, her two children, ages 14 and 16. (Flores Decl., ¶ 6.) Defendant's minor daughter was the victim of a violent crime. (Id., ¶ 7.) From September through December 2025, Defendant's daughter was experiencing the effects of that violent crime and could not be alone. Defendant stayed with her daughter as her daughter worked with law enforcement to report and investigate the crime. (Id., ¶¶ 8–11.) During these months, Defendant was focused on her daughter's health, safety, and well-being, while also attending nursing school. (Id., ¶¶ 8–13.)

Defendant learned of this case when she was served on October 26, 2025. Around that same time, she also learned that a hearing, specifically a case management conference, was set for August 19, 2026. (Flores Decl., ¶¶ 3–4.) Defendant did not realize that she had only 30 days to respond because the hearing date was many months away. When she attempted to file an Answer as soon as she was able, during the first week of January 2026, it was too late. (Id., ¶¶ 5, 13–14.) She then sought assistance from legal aid. (Id., ¶ 15.)

LEGAL STANDARDS

Code of Civil Procedure section 473, subdivision (b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ...

(Code Civ. Proc., § 473, subd. (b).)

The Motion was filed on February 14, 2026, within six months of both the December 17, 2025 Default and the February 10, 2026 Default Judgment. The Motion is therefore timely.

As the California Supreme Court has explained:

The purpose of this section is to enable courts to relieve a party from the consequences of enforcing the strict and technical rules of procedure, by applying such equitable rules in any individual case as will do justice between the litigants.

Melde v. Reynolds (1900) 129 Cal. 308, 312.) Further, “[b]ecause the law favors disposing of cases on their merits, ‘any doubts in applying section 473 must be resolved in favor of the party seeking relief from default’” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [citations omitted].)

Courts have defined the relevant terms. A “mistake” justifying relief may be either a mistake of fact or a mistake of law. “A mistake sufficient to vacate a dismissal may be found where a party, under some erroneous conviction, does an act he would not do but for the erroneous conviction.” (*H.D. Arnaiz, Ltd. v. County of San Joaquin* (2002) 96 Cal.App.4th 1357, 1369 [citation omitted].) Further, “[i]nadvertence is lack of heedfulness or attentiveness, inattention, fault from negligence. Excusable neglect is that neglect which might

have been the act of a reasonably prudent person under the same circumstances.” (*Alderman v. Jacobs* (1954) 128 Cal.App.2d 273, 276 [citation omitted].)

Finally, strong policies favoring adjudication on the merits and liberal construction of Code of Civil Procedure section 473, subdivision (b), favor granting the Motion:

The general rule concerning Code of Civil Procedure section 473 review is stated in *In re Marriage of Connolly* ...: “In reviewing the evidence in support of a section 473 motion, we extend all legitimate and reasonable inferences to uphold the judgment. The disposition of such a motion rests largely in the discretion of the trial court, and its decision will not be disturbed on appeal unless there has been a clear abuse of discretion. Although precise definition is difficult, it is generally accepted that the appropriate test of abuse of discretion is whether or not the trial court exceeded the bounds of reason, all of the circumstances before it being considered. [Citations.] We have said that when two or more inferences can reasonably be deduced from the facts, a reviewing court lacks power to substitute its deductions for those of the trial court. [Citations.]” However, the standard of abuse of discretion is ameliorated somewhat by the general policy promoting a hearing on the merits. Further, the broad remedial provisions of Code of Civil Procedure section 473 “should be liberally applied and the power freely exercised to carry out the policy in favor of trial on the merits.” Thus, in determining the merits of a Code of Civil Procedure section 473 motion, the court should take into account the circumstances of the case and the prejudice, if any, to the parties. There is also a strong policy behind granting relief if the moving party brings the motion for relief within the statutory time.

(*Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 803 [emphasis retained; multiple citations omitted].)

DISCUSSION

Mistake and Inadvertence

Here, Defendant’s mistake was believing that she had more time to respond to the lawsuit because she received notice that the next hearing was scheduled for August 2026. (Flores Decl., ¶ 5.) Under that erroneous belief, Defendant did not attempt to file her Answer until the first week of January 2026. Had she understood that her written response was due within 30 days of service, she would not have waited until January to attempt to respond.

Plaintiff asserts that because the Summons clearly gave Defendant 30 calendar days to file a written response, Defendant waived her ability to avoid default judgment by failing to file an Answer by November 26, 2025. However, the existence and purpose of Code of Civil Procedure section 473, subdivision (b), counters the assertion that waiver is the necessary result. (See *Melde, supra*, 129 Cal. at p. 312.)

Plaintiff further asserts that ignorance of the law does not provide grounds for relief. Plaintiff relies on a case applying the equitable doctrine of extrinsic mistake, rather than the statutory relief requested here:

The motion to set aside the default was granted pursuant to the superior court’s broad equity jurisdiction. Code of Civil Procedure section 473 could not provide the respondent with relief because

his motion to set aside the default was brought more than six months after the default had been entered.

(*Stiles v. Wallis* (1983) 147 Cal.App.3d 1143, 1147.)

Moreover, the *Stiles* court found that the facts of that case did not show extrinsic mistake and that the elements of that equitable theory were not satisfied. (*Stiles, supra*, 147 Cal.App.3d at pp. 1147–1148.) Here, unlike in *Stiles*, the Motion is timely brought under Code of Civil Procedure section 473, subdivision (b). In addition, because Defendant received notice stating that the next hearing was a case management conference set for August 2026, it was reasonable for her to be confused by the seemingly contradictory information between the Summons and the notice and to assume that she had more time to respond.

The record supports a finding of reasonable mistake and inadvertence in the form of a lack of further heedfulness or attentiveness prompted, at least in part, by the later hearing date. Defendant's mistake also may be characterized as a mistake of fact under *Arnaiz*. The evidence supports the conclusion that Defendant made an inadvertent mistake and then attempted to correct it. The Motion also clearly sounds in excusable neglect.

Excusable Neglect

Defendant's failure to attend to this action until the first week of January 2026 is excusable under the circumstances. Defendant was a single mother who was attending nursing school while providing necessary care to her minor daughter, who had suffered a violent crime. Defendant was served while those circumstances were ongoing. Her inability to come to court and respond to the lawsuit until the first week of January resulted from excusable neglect caused by the acute need to prioritize her child's health and well-being.

Plaintiff asserts that "[t]he mere fact that Defendant is busy and occupied with other affairs is insufficient to constitute excusable neglect." (Opp., 4:9–10.) But Defendant's Declaration provides evidence of serious, emergent circumstances that reasonably support a finding of excusable neglect. (Flores Decl., ¶¶ 6–13.) Defendant was not simply busy or otherwise occupied. Plaintiff submits no contrary evidence, only evidence that Defendant was served, which Defendant does not deny. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A; Flores Decl., ¶ 3.) Plaintiff's argument minimizes the serious and unfortunate circumstances that contributed to Defendant's confusion and excusable neglect and runs contrary to California's policy favoring resolution of cases on their merits.

Defendant also acted diligently. She attempted to file her Answer as soon as she was able and sought assistance from Bay Area Legal Aid when the Answer could not be filed.

Finally, granting the Motion would not prejudice Plaintiff. Plaintiff will simply be required to present its case on the merits. Plaintiff offers no evidence of prejudice beyond the ordinary burden of litigation. In light of *Carrasco*, that burden is outweighed by the policy favoring resolution of cases on their merits.

For all these reasons, the Court finds that Defendant has shown, at minimum, excusable neglect under Code of Civil Procedure section 473, subdivision (b), and has satisfied the other requirements of the statute.

JUDICIAL NOTICE IN OPPOSITION

Plaintiff's Request for Judicial Notice is **GRANTED** as to the document submitted with the request, described as the Proof of Service of Summons filed in this action on October 27, 2025. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A.)

However, judicial notice of this document is limited to its existence, content, and authenticity. It does not extend to the truth of the factual matters stated in the document. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare, for the Court's signature, a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JUNE 25, 2026**

2:00 PM

LINE: 1

26-UDL-00551

THE CROSSINGS PHASE I, L.P. VS. SUSAN MILLER, ET AL

**THE CROSSINGS PHASE I, L.P.
SUSAN MILLER**

**JULIENNE H COPON
JULIET M BRODIE**

DEFENDANT SUSAN MILLER’S DEMURRER TO PLAINTIFF’S UNLAWFUL DETAINER COMPLAINT

TENTATIVE RULING:

For the reasons stated below, the demurrer of Defendants Susan and Benjamin Miller to the complaint for unlawful detainer filed by Plaintiff The Crossings, Phase I, L.P. on May 11, 2026, is **OVERRULED**.

Defendants shall file an answer within five (5) calendar days after service of written notice of entry of this order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Plaintiff’s request for judicial notice of *MIMG CLXXII Retreat on 6th, LLC v. Miller* (Iowa 2025) 16 N.W.3d 489, a non-controlling Iowa Supreme Court decision, is **GRANTED** to the extent the Court may consider decisional law from another state and the existence of court records. (Evid. Code, §§ 452, subds. (a), (d), 453.) The Court does not take judicial notice of the truth of any disputed factual assertions in that decision. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

BACKGROUND

This is an unlawful detainer action for nonpayment of rent concerning the residential premises located at 1101 National Avenue, Unit 1108, San Bruno, California 94066 (the “subject property”). Plaintiff and Defendants are parties to a lease agreement for the subject property. The complaint alleges that Defendants breached the lease by failing to pay rent.

On March 18, 2026, Plaintiff served Defendants with a written notice requiring them to pay rent within three days or quit within 30 days pursuant to Code of Civil Procedure section 1161, subdivision (2). The notice identified April 20, 2026, as the 30-day vacate deadline. Defendants did not comply with the notice and remain in possession of the subject property. Plaintiff filed this action on May 11, 2026.

Defendants demur to the complaint on the ground that the notice is defective under the Coronavirus Aid, Relief, and Economic Security Act (CARES Act) because, according to Defendants, the CARES Act required Plaintiff to give them 30 days to cure the alleged nonpayment, not merely 30 days to vacate. Defendants rely

on *Sherwood Auburn, LLC v. Pinzon* (2022) 24 Wn.App.2d 664, 671–672. Defendants contend a demurrer is proper under Code of Civil Procedure section 430.10, subdivision (e), because service of a valid statutory notice is an element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.)

Plaintiff opposes the demurrer, contending that *Sherwood* is non-controlling and that Plaintiff’s notice complied with the CARES Act because Defendants were given at least 30 days’ notice to vacate. Plaintiff further contends that California law does not require a 30-day notice to pay rent. Plaintiff also relies on non-controlling authority holding that the CARES Act’s 30-day notice requirement does not apply to rent defaults arising after the temporary moratorium period. (*MIMG CLXXII Retreat on 6th, LLC v. Miller* (Iowa 2025) 16 N.W.3d 489.)

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading, not the evidence or other extrinsic matters. It therefore lies only where the defect appears on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) The Court treats a demurrer as admitting all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156–157 [citation and internal quotation marks omitted].)

DISCUSSION

The rules of statutory construction are straightforward. The Court first looks to the statutory text and gives the words their ordinary meaning. If the text is clear and unambiguous, the inquiry ordinarily ends. (*In re Marriage of McIntyre & Shayan* (2024) 106 Cal.App.5th 76, 82, review denied Jan. 15, 2025.)

The CARES Act provides that a lessor of a covered dwelling unit “may not require the tenant to vacate the covered dwelling unit before the date that is 30 days after the date on which the lessor provides the tenant with a notice to vacate.” (15 U.S.C. § 9058(c)(1).) It also provides that the lessor “may not issue a notice to vacate under paragraph (1) until after the expiration” of the 120-day moratorium period beginning March 27, 2020. (15 U.S.C. § 9058(b), (c)(2).)

The Court need not decide, on this demurrer, whether the CARES Act’s 30-day notice provision remains generally applicable to post-moratorium rent defaults. Even assuming the subject property is a covered dwelling and the CARES Act notice provision applies, Defendants have not shown a defect on the face of the complaint. Section 9058(c)(1) refers to a 30-day notice to vacate; it does not state that a tenant must receive 30 days to cure nonpayment of rent. *Sherwood Auburn* reads the statute differently, but it is non-controlling, and Defendants cite no controlling California or federal authority requiring this Court to follow that construction.

Here, the complaint alleges that Plaintiff served the notice on March 18, 2026. The notice required Defendants to pay rent within three days or quit within 30 days, and it set April 20, 2026, as the vacate deadline. Plaintiff did not file this action until May 11, 2026. Thus, even assuming the CARES Act applies, the

face of the complaint shows that Defendants received more than 30 days' notice to vacate before this action was filed. The notice also complied with the three-day pay-or-quit procedure required by Code of Civil Procedure section 1161, subdivision (2). Because Defendants raise no other challenge to the sufficiency of the complaint, the demurrer is **OVERRULED**.

Defendants shall file an answer within five (5) calendar days after service of written notice of entry of this order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

Posted: 3:00 P.M.

